

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORKAlexis M. CordobaUSDC SDNY
DOCUMENT
ELECTRONICALLY FILED
DOC #:
DATE FILED: 4/12/10

PRO SE OFFICE

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

Elyse MARTINEZ shield #12566
OFFICER AT 7TH PRECINCT.
POLYONISIN HA, OFFICER AT 7TH PRECINCT
CITY OF NEW YORK/N.Y. P.D.Second Amended
COMPLAINTunder the
Civil Rights Act, 42 U.S.C. § 1983
(Prisoner Complaint)09 CV. 6106 (RJH) (MHD)
Jury Trial: ☒ Yes ☐ No
(check one)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name Alexis M. Cordoba
ID # 09A 6020
Current Institution UPSTATE CORRECTIONAL FACILITY
Address P.O. BOX 2001
MALONE, NEW YORK 12953

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

ATT "Please send copy back to Seiden for personal records Thank You"

Defendant No. 1 Name Elyse MARTINEZ Shield # 12566
Where Currently Employed N.Y.P.D. 7th Precinct
Address 19 1/2 Pitt St, New York, New York
10013

Defendant No. 2 Name POHYONGJIN HA (Officer) Shield # N/A
Where Currently Employed N.Y.P.D. 7th Precinct
Address 19 1/2 Pitt St, New York, New York
10013

Defendant No. 3 Name CITY of New York/N.Y.P.D. Shield # N/A
Where Currently Employed _____
Address 11 N/A 11 11 (P)

Defendant No. 4 Name _____ Shield # _____
Where Currently Employed _____
Address _____ (P)

Defendant No. 5 Name _____ Shield # _____
Where Currently Employed _____
Address _____ (P)

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur? University of Illinois at Chicago (2)

B. Where in the institution did the events giving rise to your claim(s) occur? _____

/ / / / / / / / @

C. What date and approximate time did the events giving rise to your claim(s) occur? ON
July 30, 2008 APPROXIMATE 11:10 P.M.
/// /// /// /// /// // / / / / @

D. Facts: ON JULY 30, 2008 APPROXIMATELY 11:10 PM, I WAS FORCEFULLY PULL
OUT OF VEHICLE BY MEMBERS OF THE N.Y.P.D. IN BROOKLYN. AFTER CRASH, I WAS
DOUBLE CUFF "2 DIFFERENT HANDCUFFS." THEN WAS HIT IN THE HEAD WITH A WALKIE TALKIE BY
ELYZE MARTINEZ SHIELD #12566, THEN KICK, PUNCH IN THE FACE, HEAD AND BACK BY ELYZE
MARTINEZ AND OTHER OFFICER OF THE N.Y.P.D. I WAS THROWN TO THE FLOOR WHILE STILL
BEING PHYSICALLY ABUSE BY THIS OFFICERS. A FEW MINUTES LATER I WAS GRAB BY MY ARM PITTS
AND DROPPED ON THE CONCRETE FLOOR BY 2 N.Y.P.D. OFFICER AND THROWN IN THE BACK OF
A N.Y.P.D. PATROL CAR. I WAS ASK BY FIVE N.Y.C.M.S. IF I WAS ALLRIGHT OR NEEDED
MEDICAL ASSISTANCE, I TOLD THEM YES. AN N.Y.P.D. OFFICER TOLD THEM THAT I WAS ALLRIGHT
AND DID NOT NEEDED MEDICAL ASSISTANCE, TO COME BY THE PRECINCT LATER. I WAS DRIVEN
TO THE 7TH PRECINCT IN MANHATTAN FROM BROOKLYN. I WAS STRIP SEARCH ORDER TO TAKE
ALL MY CLOTHES OFF. I WAS DENIED MY PHONE CALL TO CALL LAWYER OR FAMILY MEMBERS.
VIOLATING MY CIVIL RIGHTS AS A PERSON. I WAS CHOKED FROM BEHIND BY OFFICER
POTTYONGJIN, HA AND THROWN ON THE FLOOR WHEN I DEMANDED MY PHONE CALL.
THIS WAS WITNESS BY THE CAPTAIN ON DUTY ON JULY 31, MIDNIGHT SHIFT, AND A FRIEND
OF MINE THAT WAS ALSO INVOLVE IN THE CAR ACCIDENT AND CIVILIANS THAT WORK
AROUND THE AREA IN BROOKLYN. MY FRIEND NAME IS KEITH MURPHY. THEY ALSO
"N.Y.P.D." DAMAGE AND STOLE PROPERTY THAT WAS IN MY POSSESSION AND THE VEHICLE
WHITE GOLD WATCH WITH DIAMONDS, T-MOBILE DASH PHONE, SPRINT PHONE, LAP TOP
COMPUTER IBM, VERSACE PRESCRIPTION EYE GLASSES, THE INTERNAL AFFAIRS
DIVISION HAVE PICTURES, AND RECEIPT & STATEMENT, GAVE AND MADE BY ME ON AUGUST
9, 2008.

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. I SUSTAINED A SWOLLEN RIGHT CHEEK BONE.
BLOW THE EYE. NECK & BACK PAIN INJURIES. SKIN SCRAPS IN MY ELBOW & KNEES
SMALL GASH ON TOP OF HEAD, SWOLLEN WRIST. I WAS PRESCRIBE
MUSCLE RELAXER BY DOCTOR AT INNEN FAITH MEDICAL CENTER IN
BROOKLYN. FOR MY BACK & NECK PAIN.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ☐ No ☒

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ☒ No ☒ Do Not Know ☒

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ☒ No ☒ Do Not Know ☒

If YES, which claim(s)?

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ☒ No ☒

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ☒ No ☒

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

1. Which claim(s) in this complaint did you grieve?

2. What was the result, if any?

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process.

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: BECAUSE
THIS INCIDENT HAPPEN IN THE STREETS NOT IN JAIL
OR CORRECTIONAL FACILITY

2. If you did not file a grievance but informed any officials of your claim, state who you

informed, when and how, and their response, if any: I informed The Division of Internal Affairs in Brooklyn "when I Bail out the Truck Pictures of my Injuries and Damage Property "Whites go watch" and gave me a complain Number, which is 08-34747 CCRB# ~~200811586~~ 200811586

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies.

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). I WOULD LIKE THE PDNTS TO BE BROUGHT UP ON CHARGES, AND I WILL LIKE TO BE COMPENSATED FOR THE INJURY THAT I RECEIVED BY THE N.Y.P.D EMPLOYEES, PHYSICALLY, MENTALLY AND EMOTIONALLY, I WOULD LIKE TO BE AWARDED 5,000,000 FROM THE CITY OF NEW YORK FOR MY CIVIL RIGHTS BEING VIOLATED BY IT'S EMPLOYEES, AND BE AWARDED BY OFFICER ELIBE MARTINEZ SHIELD #12566 AND OFFICER POKYONJIN HA, BOTH EMPLOYED AT THE 7TH PRECINCT AT 191E PITT ST N.Y. N.Y. 10013 THE AMOUNT OF 9.5 MILLION A PIECE FOR PHYSICAL INJURY SUSTAIN BY THEM AT THE TIME OF THE ARREST.

On
these
claims

VI. Previous lawsuits:

- A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes ____ No ____

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ____ No ____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes ____ No ____

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ____ No ____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this ____ day of _____, 20__.

Signature of Plaintiff _____

Inmate Number _____

Institution Address _____

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this ____ day of _____, 20__, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff: _____